

21NWCV00697 21NWCV00697

County: los-angeles

Division: Civil Law and Motion

Department: R

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THE JEN & MI LU FAMILY, LLC. v. JUMPSTART
BODYFUEL, LLC, ET AL.

CASE NO.: 21NWCV00697

HEARING: Wednesday, July 1, 2026, at 9:30 AM

1.

Defendant LINDA IKEDA's Motion for Judgment on
the Pleadings is CONTINUED to Thursday, July 9, 2026, to be heard
in conjunction with Plaintiff's Motion for Leave to Amend.

2. Defendant LINDA IKEDA's Motion for
Reconsideration is GRANTED.

Moving Party to give
notice.

Background

On October 20, 2021,
Plaintiff THE JEN & MI LU FAMILY, LLC ("Plaintiff") filed this breach of
contract action against Defendants JUMPSTART BODYFUEL, LLC; LINDA IKEDA
("Defendant"); and DOES 1 through 50, inclusive.

On May 7, 2026, the Court GRANTED Plaintiff's Motions to

Compel. The Court ordered provide verified responses and documents, without objection by no later than 60 calendar days from date of the Court's issuance of this Order and to for a deposition by no later than 60 calendar days from the date of the Court's issuance of this Order.

Legal Standard

A motion for reconsideration must be "based upon new or different facts, circumstances, or law." (CCP § 1008(a).) The moving party "shall state by affidavit... what new or different facts, circumstances, or law are claimed to be shown." (Ibid.) The moving party must also show diligence and explain why he or she could not have presented the new or different facts or law earlier. (California Correctional Peace Officers Assn. v. Virga (2010) 181 Cal.App.4th 30, 46; Baldwin v. Home Sav. of America (1997) 59 Cal.App.4th 1192, 1200.)

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order." (CCP § 1008(a).)

The Court grants

Defendant relief for the following reasons:

First, on May 7, 2026, Edward Villalobos withdrew as Defendant's Counsel because there was a breakdown in communication. Counsel's withdrawal left Defendant without representation and thus, Defendant did not have an opportunity to effectively oppose Plaintiff's motions to compel.

Second, Defendant acquired new counsel shortly after this Court May 7, 2026, order. The Court finds it appropriate to allow Defendant an opportunity to respond to Plaintiff's discovery requests. Indeed, the purpose of motions to compel discovery is to obtain compliance, not to punish. The Court believes it to be unnecessary to retain its May 7, 2026, ruling as it would only serve to punish Defendant.

Thus, Defendant's Motion for Reconsideration is GRANTED.

Defendant LINDA

IKEDA is relieved from this Court's May 7, 2026, discovery order. The order is modified as follows:

(1)

Defendant

LINDA IKEDA shall serve verified responses, with objections to Request for Production, Set Five within twenty (20) days of this Order.[1]

(2)

Defendant

LINDA IKEDA is ordered to appear for deposition by no later than 30 calendar days from the date of the Court's issuance of this Order. Defendant may assert objections to deposition categories and may move for a protective order if necessary.

(3) The

Court's \$500 sanction is deferred. If Defendant LINDA IKEDA fails to provide discovery within twenty (20) days of this Order, the \$500 sanction shall be imposed.

[1]

Defendant asserts each category of personal discovery in Request for Production, Set Five is independently disproportionate. Defendant's arguments are more appropriately raised through objections. Similarly, to the extent Defendant seeks a protective order, Defendant shall file a protective order after raising the appropriate objection.